TIRIWAMAMBO KANGAI
versus
THE MIRROR
and
TATENDA CHIZU
and
THE MIRROR EDITOR NKULUMANI MLAMBO (N.O)

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE, 24, 26 & 28 November 2025 & 21 July 2026

Civil Trial - Damages for Defamation

Mr I Muchini, for the plaintiff
Mr T. Mupambadzi, for the 1st-3rd defendants

MUSITHU J:

[1] Before the court is a claim for damages arising from an alleged defamation of the plaintiff in an article published by the first defendant, at the instance of the second and third defendants. The publication of the impugned article was made in the first defendant's issue of 21-27 June 2018. The plaintiff claimed, as against the defendants jointly and severally, the one paying the others to be absolved, payment of the sum of US$50 000.00 as general damages for defamation of character, plus interest thereon at the rate of five per cent per annum calculated from the date of judgment to the date of payment in full and costs of suit on the legal practitioner and client scale.

Background and the Plaintiff's case

[2] The plaintiff is a legal practitioner who, at the time the cause of action arose, was employed as the Public Prosecutor in Charge of Buhera District. The first defendant is The Mirror, a newspaper engaged in, *inter alia*, the business of publishing news, stories and other media content. The second defendant is Tatenda Chizu, a female adult journalist employed by the first defendant at the material time. Her duties included *inter alia*, reporting on court proceedings. The third defendant is Nkulumani Mlambo, who was cited in his official capacity as the editor of the first defendant.

[3] The plaintiff averred that on or about 21 June 2018, the second defendant wrote a newspaper story in which she alleged that two villagers from Buhera had told a Magistrates' Court sitting at Gutu that they had stolen cattle after being sent by the plaintiff, who operated a butchery, to steal the livestock on his behalf.

[4] The plaintiff averred that the published story was entirely false in several respects. Firstly, he maintained that no such allegations were made during the criminal proceedings before the trial court. Secondly, he never sent any criminals to steal cattle on his behalf and thirdly, he was not operating a butchery at the relevant time. The plaintiff also averred that the third defendant acting as the editor, caused the story to be published without first satisfying himself that the allegations had in fact been made in court or verifying their truthfulness. The first defendant subsequently published the story in its newspaper and further promoted it by creating banners carrying the story as its headline.

[5] The plaintiff further averred that the allegations were never made during the criminal proceedings, as demonstrated by both the handwritten record of proceedings and the certified transcript of the proceedings. He contended that the publication damaged his reputation and tarnished his character and standing in the eyes of his employer, namely the National Prosecuting Authority, members of the church in which he fellowshipped, fellow legal practitioners and the general public.

[6] Further according to the plaintiff, the defendant made scandalous and false allegations which included the following:

a. that the plaintiff, a Public Prosecutor, sent accused persons to steal cattle on his behalf;
b. that the plaintiff, who allegedly operated a butchery, instructed criminals to steal cattle; and
c. that these allegations of criminal impropriety had been made against him in open court, when in fact they were not.

[7] The plaintiff further averred that the inaccurate, unfair and unbalanced article was published and circulated throughout Zimbabwe and internationally, yet he was never a party to the criminal proceedings in question. The defendants were under a duty to verify that the allegations had indeed been made in court before publishing the story. They also ought to have interviewed him and conducted such investigations as were necessary to establish the truth of the allegations before the publication of the story. The defendants failed to undertake any such verification or investigation.

[8] The plaintiff averred that the publication was defamatory because it falsely imputed that he was guilty of criminal conduct and that he had the propensity to engage in dishonourable acts. The defendants knew, or ought to have reasonably known, that there existed a real risk that the story was false and would cause substantial and possibly irreparable harm to his reputation. The plaintiff averred that the defendants either intentionally or negligently caused such harm.

[9] The plaintiff particularised the damage that he allegedly suffered as follows:

a. damage to his reputation within the legal fraternity and the general public because of the false impression created by the article that he was engaged in criminal acts;
b. his standing as the son of the late national hero, Kumbirai Kangai, was gravely damaged;
c. his credibility as a legal practitioner and Public Prosecutor was undermined;
d. his reputation as a church leader committed to Christian values was soiled and tainted; and
e. The defamatory publication lowered his standing in the eyes of his employer, work colleagues, church members and the members of the public.

[10] The plaintiff further averred that the publication was wrongful and the damage caused to his reputation remained ongoing because the article continued to circulate on social media platforms. The plaintiff also averred that any reasonable person reading the article and banner headline in their ordinary meaning would understand them as conveying defamatory imputations as they perceived him a cattle thief. According to the plaintiff, the publication lowered him in the estimation of ordinary right-thinking members of society, injured his dignity, continued to be widely disseminated through online media platforms, and attacked his honesty and integrity which are attributes expected of a Public Prosecutor, thereby undermining public confidence in the criminal justice system.

[11] The plaintiff further averred that, notwithstanding his demand for a retraction, the defendants aggravated the defamation by dispatching their loss control officer to persuade the police at Murambinda to arrest him on what he described as baseless allegations. The defendants disregarded the official court record which demonstrated that no such allegations were made during the criminal trial, and they relied upon what he characterised as the unethical and perjurious assertions of the accused persons defence counsel.

[12] Further according to the plaintiff, these false allegations left him with no alternative but to institute the present proceedings for defamation. The allegations struck damaged his

reputation as a person occupying the office of a Public Prosecutor, and were defamatory in the highest degree, thereby justifying an award of punitive damages. The plaintiff accordingly claimed general damages in the amount of US$50 000.00, which he contended were commensurate with the seriousness of the malicious and false allegations and the continuing harm resulting from the defendants' refusal to retract the publication. All the three defendants were jointly and severally liable for the damages claimed.

The Defendants' Case

[13] In their plea, the defendants denied liability for the plaintiff's claim and contended that the alleged defamatory words were true and were uttered in open court by the accused persons, Norman Chiwa and Owen Chiwa, during their criminal trial on stock theft charges, and that the newspaper merely reported what was said in court. They accordingly denied that the newspaper article contained false information.

[14] The third defendant was satisfied that the impugned words had indeed been uttered in open court during the trial. The defendants did not dispute that the article was published but insisted that the newspaper merely reported information that had been stated in court. They contended that the mere fact that the impugned words were not captured in the official court record did not mean that they were never uttered. The defendants further averred that it was within the discretion of the court to determine what should be recorded in the official record and that the omission of certain words from the record was therefore not conclusive.

[15] While admitting that the plaintiff was not a party to the criminal proceedings, the defendants submitted that he was however implicated as an accomplice by Norman and Owen Chiwa during the criminal proceedings. The defendants relied on the defence of qualified privilege. The defendants denied having any intention to defame or damage the plaintiff's reputation. The defendants further averred that the publication was made in the public interest as a report on court proceedings and that they did not fabricate any allegations against the plaintiff.

[16] The defendants reiterated that the impugned words published in the newspaper were those spoken in court by Owen and Norman Chiwa during the trial. They contended that, had those words not been uttered in court, they would never have published them. The defendants further averred that they responded to the plaintiff's letter of demand by setting out their defence. They furnished the plaintiff with a sworn affidavit by Owen Mafa, the legal practitioner who represented Norman and Owen Chiwa at the Gutu Magistrates' Court, who confirmed that the impugned words had indeed been uttered in court.

[17] The defendants averred that they did not invent or manufacture the story but merely reported what had been said during the trial proceedings before the Gutu Magistrates' Court. The plaintiff's claim for $50 000.00 was therefore not justified as the defendants had not defamed him in any way. If anyone was liable for implicating the plaintiff, it was Norman and Owen Chiwa, who allegedly made the statements during the criminal proceedings. The defendants accordingly urged the court to dismiss the plaintiff's claim with costs.

The Issues

[18] The matter was referred to trial on the following agreed issues as recorded in the joint pre-trial conference minute dated 1 November 2022

- whether or not the defamatory statements were made or uttered.
- If they were made, the place and occasions on which they were made.
- Whether or not the utterances are covered under the defence of qualified privilege.
- If not, whether or not the plaintiff is entitled to the defamation damages as claimed by him.

The Trial

The Plaintiff's Case

[19] The plaintiff gave evidence as follows. He is a registered legal practitioner currently practising with the law firm Venturas and Samukange Legal Practitioners. Prior to joining that law firm, he served as a public prosecutor and was stationed at the National Prosecuting Authority's Offices in Mutare, Buhera and the Head Office in Harare. Sometime in June 2018, whilst serving as a public prosecutor at Murambinda Magistrates Court, he received a telephone call from the Resident Magistrate at Murambinda Magistrates Court asking him to report to his office. Upon arrival, the Resident Magistrate produced a copy of The Mirror newspaper, and drew his attention to an article published therein and requested him to read it.

[20] The article was concerned with certain accused persons who were alleged to have stolen cattle in the Gutu area under Masvingo Province, who told the court that they had been sent by the plaintiff to commit the offence. Following the publication of the article, the plaintiff started to receive telephone calls from relatives enquiring about the allegations. The following day, he travelled to the Gutu Magistrates Court where the accused persons were alleged to have appeared. The plaintiff examined the court record but found no reference to his name or anything to suggest that the accused persons had uttered words implicating him in the commission of the offence. The record revealed that the accused persons appeared on a Form 242 (Request for Remand) and were admitted to bail.

[21] Whilst he was in the Gutu area, the plaintiff observed banners bearing the inscription *"Prosecutor steals cattle."* The banners differed from those displayed in Murambinda, which bore the words *"Prosecutor involved in a scandal."* According to the plaintiff, the defendants published the article without contacting him for a comment or affording him an opportunity to comment on the allegations. He thereafter obtained photocopies of the court record and spoke to the public prosecutor who had handled the matter. The public prosecutor confirmed that the accused persons had not mentioned the plaintiff's name during the proceedings and referred him to the court record. The plaintiff immediately instructed his legal practitioners to serve the defendants with a letter of demand calling upon the defendants to retract the article because he had never been questioned or interviewed by the police in connection with the alleged offence.

[22] The plaintiff stated that although the letter of demand was served on the defendants, no retraction was ever made. He consequently instituted the present proceedings. Thereafter, he saw an affidavit deposed to by a legal practitioner who claimed to have been present in court when the impugned utterances were made during the criminal proceedings. The affidavit was brought to his attention after summons were issued. The plaintiff argued that if the utterances were indeed made in court, then the record ought to have reflected them. Alternatively, steps would have been taken to correct any omission in the record. However, no such steps were taken.

[23] The plaintiff also stated that by the time the article was published in June 2018, he had ceased operating his butchery, having closed the business in March 2018. The plaintiff was astonished that such a malicious story had been published when he was never involved in the alleged offence. Through his legal practitioners, he demanded a retraction of the article, but the defendants refused to retract it. The article circulated widely in Buhera and Mutare and was also available online. It remained accessible online because it was never taken down.

[24] According to the plaintiff, the publication adversely affected his personal and professional reputation. He became a subject of discussion amongst workmates, family members and fellow congregants at his church, where he was then serving as a ministerial servant (deacon). Members of staff at his son's school also became aware of the publication. The plaintiff brought the article to the attention of his provincial superiors and the Chief Public Prosecutor, who in turn reported the matter to Head Office. He was, thereafter, advised that had the allegations been progressed further, they could have resulted in his suspension

pending investigation. He maintained that the publication cast serious aspersions on his character and integrity.

[25] In relation to the quantum of damages, the plaintiff testified that, at the time of the publication, he was the Prosecutor-in-Charge for Buhera District and occupied a public office. His family was well known in Buhera as his late father served as the Member of Parliament for more than twenty years and had also held ministerial office. In assessing the amount claimed as damages, he had regard to awards made in comparable defamation cases. He also considered the defendants' conduct as the article remained accessible online because it was never removed from first defendants' website. The plaintiff also averred that a responsible journalist would have afforded him an opportunity to respond to allegations of such a serious nature before publishing them.

[26] The plaintiff also averred that the matter had remained pending for a considerable period without closure. The publication had caused lasting damage to his name and reputation. Even if the defendants were to publish a retraction now, most of the people who had read the original article would not even see the retraction. He added that the allegations were of such a serious nature that they could have prompted investigations by the police, the National Prosecuting Authority and the presiding magistrate.

[27] The plaintiff further was surprised by the defendants' insistence that the impugned words were uttered during the accused persons' defence. The accused persons had appeared for initial remand and at that stage they were not required to tender a defence outline. The proceedings were confined to initial remand and bail application. The plaintiff queried how the accused persons' defence outline would have been tendered at that stage of the proceedings.

[28] Under cross-examination, the plaintiff admitted that he was not related to any of the representatives of the first defendant and was unaware of any reason why they would fabricate such a story against him. He further testified that the prosecutor with whom he spoke to about the article was stationed in Masvingo whilst he was stationed in Buhera, and therefore he could not have influenced here in any way. It was also the first time that he had met her. The prosecutor had informed him that she had heard no such utterances during the proceedings, and she also stated that herself had been a victim of the same newspaper, as it had also previously published a false story about her.

[29] Under cross-examination, the plaintiff conceded that he had not secured an affidavit from the prosecutor and that he had no intention of calling her as a witness. As a legal

practitioner, he was aware of the manner in which evidence must be placed before the court but disputed the suggestion that her evidence was not relevant.

[30] The plaintiff stated that he referred to the legacy of his late father, Mr Kangai, to demonstrate that he was a well-known person. The plaintiff was aware his cousin Tineyi Godfrey Kangai who resided at Kangai village, had also been implicated in the same allegations. When asked about his whereabouts on 18 June 2018, the plaintiff stated that he was probably at work since it was a working day. He did not dispute that Owen Mafa was the legal practitioner who represented the accused persons. He however disputed Mafa's evidence that the impugned utterances were made in court, based on the contents of the record of proceedings.

[31] The plaintiff stated that he did not believe that Mafa's interest was limited to merely stating what happened in court, particularly because his affidavit only surfaced after summons had been issued. He described Mafa's affidavit as vexatious and accused him of working in cahoots with the defendants. According to the plaintiff, Mafa's affidavit contradicted what had transpired in court.

[32] Commenting on the banner accompanying the publication, the plaintiff stated that although it did not mention his name, his name appeared in the article to which the banner related. He understood the article to mean that he had stolen cattle, although he was unable to identify the specific part of the article where such an allegation was made. He was not certain of the precise allegations being referred to by the defendants, save that the allegation was that he had sent the accused persons to steal cattle.

[33] After the publication of the article, the plaintiff contacted the provincial authorities in the NPA and the Chief Public Prosecutor for Manicaland, who in turn communicated with Head Office. He was not suspended, he retained his employment, and his position and duties were not affected, although he remained under suspicion. Although he had no qualifications in media studies, he was aware that balanced reporting required that a reporter must obtain a comment the affected person before publishing an article about that person. Journalists were guided by principles of fairness and balanced reporting.

The Defendant's Case

[34] Evidence was led from three witnesses. These were the second defendant, Tatenda Chizu, the third defendant, Nkulumani Mlambo, and Owen Mafa a legal practitioner**.**

Tatenda Chizu

[35] Her evidence was as follows. She was employed as a marketing officer at Great Zimbabwe University and held a Bachelor of Arts Honours Degree in Media and Cultural Studies. In 2018, she was employed by the first respondent, where her duties included covering court cases and other diverse stories. She testified that on the date in question, she attended court in search of stories to publish. She heard a case of stock theft involving three accused persons, two of whom were brothers, while the third accused person, by the name Kangai, was absent. When the State case was read out, she was taking notes.

[36] According to the witness, the accused persons were applying for bail pending trial through their legal practitioner. The first accused person, Owen Chihwa, informed the court that the third accused person was the plaintiff's brother who ran a butchery business. The accused person also told the court that they had been sent by the plaintiff to steal the cattle. The accused further testified that the accused persons were allegedly committing the crime of stock theft on behalf of the plaintiff.

[37] The witness stated that before that incident she did not know the plaintiff, and therefore, she had no reason to fabricate the story against him. The witness claimed that after the court proceedings, she approached the accused persons' legal practitioner, Owen Mafa, who confirmed that the said allegations of stock theft had been made in court against the plaintiff. The witness also claimed that she was physically present in court present when the words were uttered, and therefore, it was her duty as a journalist to report events as they happened. She explained that she reported on the matter because stock theft was rampant in the area that she covered, namely Gutu and Bikita. Because the allegations arose from court proceedings, she did not approach the prosecutor or the court for confirmation. Instead, she approached the accused persons' legal practitioner to verify what had been said.

[38] The witness insisted that the story was fair and balanced and that she did not fabricate it. The plaintiff had been merely implicated in the allegations made by the accused persons. The accused persons had mentioned that the plaintiff operated a butchery in Buhera. She told the court that she was not aware of the plaintiff's business before the court proceedings.

[39] Under cross-examination, the witness maintained that she was physically present in court on the date in question. It was her evidence that Owen Chihwa informed the court that the plaintiff's brother, who was not in court, had stated that it was the plaintiff who sent them to steal cattle. These allegations were made in the presence of the accused persons' legal practitioner. The words were uttered when the accused persons were applying for bail. After the proceedings, the witness approached the accused persons' legal practitioner since the

allegations were not contained in the State case, and she wanted to confirm the full name of the person referred to by the accused person. It was during that conversation that she learnt about the plaintiff's profession.

[40] The witness told the court that she reported that the plaintiff had been implicated, and not that he had committed the offence. She maintained that the publication was not defamatory because the allegations had been made in court. She confirmed that she did not consult the record of proceedings before the publication but relied on the additional information that she obtained from the accused persons' legal practitioner. She stated that journalists did not usually check with the record in such circumstances and she was unaware whether her employer had done so.

[41] The witness did not remember whether the article had been published online. She stated that although she learnt that the plaintiff was a public prosecutor and appreciated that the allegations were potentially defamatory, she did not take steps to contact him because, in her view, where a report emanated from court proceedings, a journalist was not required to contact accused persons or persons mentioned in court to authenticate the story. The witness also told the court that because the allegations had been confirmed by the accused persons' legal practitioner, there was no need to approach the plaintiff. The witness was not aware of the specific requirements necessary to successfully plead the defence of qualified privilege, as she believed that such requirements were unnecessary where the statements originated from court proceedings.

[42] Concerning the newspaper banner, the witness confirmed that the banner formed part of the story and that she understood the reference to the words "*Buhera prosecutor*" to mean the plaintiff. She was not responsible for producing the banner. She took no steps to correct the message conveyed by the banner because it had been printed at night and she did not follow up on it. The witness also stated that she latter followed up on the criminal trial, but she was informed that the accused persons had absconded.

[43] Under re-examination, the witness stated that she obtained the plaintiff's full name and the fact that he was a public prosecutor in Buhera from the accused persons' legal practitioner. She confirmed with the legal practitioner that the allegations that the accused persons had been sent by the plaintiff to steal cattle had been made in court

[44] When asked by the court to state what exactly was said by the accused person concerning the plaintiff, the witness stated that the accused person Owen Chihwa had told the court that the third accused person, Tineyi Godfrey Kangai who was absent from court, had

informed them that the person who was sending them to steal cattle was his brother. She stated that she learnt about the plaintiff's full name and his profession from the accused person's legal practitioner.

Nkulumani Mlambo

[45] The second witness was Nkulumani Mlambo. His evidence was as follows. He was a qualified journalist, and he held a Diploma in Journalism, a Diploma in Marketing Management and certificates obtained from various journalism workshops attended. He had been employed by the first defendant since 2012, but he had since left the organisation. In 2018 they published an article concerning the plaintiff. The plaintiff wrote to them demanding a retraction of the article. They declined to retract the article because they believed that they had merely reported on what had been said in court. The witness explained that the editing process involved gatekeeping, which included verifying whether a story was of public interest, establishing its authenticity, considerations of the circumstances surrounding the story, and determining whether it was newsworthy and of public benefit.

[46] The witness testified that the seriousness of the offence of stock theft, coupled with the fact that a public official had allegedly been implicated, influenced their decision to publish the article. Before the publication he engaged the second defendant, Tatenda Chizu, to verify the authenticity of the story because she had been present during the court proceedings. After engaging the second defendant, he was satisfied that the story was authentic and truthful. According to the witness, as publishers they did not ordinarily seek comments from persons mentioned in court proceedings because they would be reporting on what transpired in court. The impugned article was based on what was said in court.

[47] According to the witness, the word ***"steal"*** was used in the banner in inverted commas, to demonstrate that the words were not those of the newspaper. The newspaper merely reported on what was said in court. The witness explained that a banner did not contain the full details of a story but was intended to attract the attention of readers to the full article. Concerning the use of the headline; ***"Buhera prosecutor implicated in stock theft"***, the witness stated that the story was based on what was said by the accused persons in court concerning the plaintiff. The witness maintained that the headline to the article merely stated that the plaintiff had been implicated because this was exactly what happened in court. It was not the defendants' responsibility to verify what was not stated in the court record because what was important was that the utterances were made in court.

[48] The witness further stated that after receiving the plaintiff's letter of demand, it was resolved that they stand by the article because they believed they had overwhelming evidence to defend their position. The witness knew Omen Mafa as the legal practitioner who had represented the two accused persons in court. After receiving the letter of demand, they also engaged Mr Mafa, who confirmed that the article was accurate and that the plaintiff's name had indeed been mentioned during the proceedings. The witness denied the allegation that Mr Mafa was acting in collusion with the defendants.

[49] According to the witness, the first respondent had selling points throughout the Southern Region and in Murambinda they supplied approximately fifteen outlets. The article was not published online at the time but was only distributed physically. Regarding the quantum of damages claimed by the plaintiff, the witness averred that the plaintiff had simply attached figures without justification.

[50] Under cross-examination, the witness acknowledged that he was not present in court when the impugned words were allegedly uttered. He nevertheless maintained that his evidence was not hearsay, as the second defendant, who had attended the proceedings and written the article, was the one who brought the story to him. He testified that he verified the story with her because she had been present in court. The witness further stated that, after receiving the letter of demand, they confirmed the contents of the story with Mr Mafa, who also confirmed that the plaintiff's name had been mentioned in court. He admitted, however, that they did not obtain or examine the court record before publishing the article. He explained that, as journalists, they relied on their reporter, who had been physically present in court and had witnessed the proceedings.

[51] According to the witness, the standard practice in journalism was that journalists were not required to interview persons whose names were mentioned during court proceedings. Regarding the banner, the witness maintained that the banner was not the full story, and therefore a defamation could not be based on the banner alone. It was not necessary for them to check with the court record because they had already verified the story with the legal practitioner who had been present during the proceedings.

[52] Under cross examination, the witness denied misleading the court when he stated that the article had not been published online in 2018. This was because the newspaper only began publishing online in 2020, although before that time some people attributed stories circulating online to first respondent, when such stories were not published by the newspaper.

Omen Mafa

[53] He was the defendants' third witness. His testimony was as follows. He was a registered legal practitioner practising under the law firm of Mutendi Mudisi & Shumba Legal Practitioners, in Masvingo. Sometime in June 2018 he received instructions from two accused persons, Norman and Owen Chiwa, who were facing charges of stock theft. Norman was a juvenile at the time. When he arrived at court, proceedings had already commenced and the accused persons were in the dock. The Magistrate was in the process of recording the accused persons' pleas.

[54] In his defence to the charge, the first accused person stated that he and a person named Kangai had been sent by another Kangai, whom he did not know personally but was being referred to as a public prosecutor based at Murambinda Magistrates Court, to steal cattle in Gutu. The person referred to as Kangai allegedly operated a butchery in Murambinda. After hearing the explanation, the witness approached the bar and engaged the public prosecutor to establish the names of the accused persons and the charges they were facing. It was at that stage that he realised that the accused persons were the clients he had been instructed to represent. He advised the court he was acting on behalf of both accused persons.

[55] The witness stated that although he arrived after proceedings had commenced, he participated in the proceedings. As an officer of the court, he had no reason to misrepresent what had happened. He challenged the authenticity of the record of proceedings that was placed before the court by the plaintiff. The witness claimed that he was never invited by the Clerk of Court to physically inspect the record of proceedings as was the norm when a record was required for use in court proceedings.

[56] The witness averred that the record before court did not contain the signatures of the presiding Magistrate, the supervising Magistrate, the trial prosecutor and the defence counsel representing the accused persons. The witness stated that the first sentence in the record was misleading because it suggested that he only represented one accused person, yet he was representing both. According to the witness, had he been requested to inspect and certify the record, he would not have signed it because it did not accurately record the proceedings. The witness further averred that a proper record should contain a certificate of completeness confirming that the participants in the proceedings had physically inspected and confirmed the contents of the record.

[57] The witness maintained that he had no reason to lie against the plaintiff. He had no personal relationship with the defendants herein, apart from being invited to give testimony in his professional capacity. The witness was approached by Ruvengo Maboke & Company

Legal Practitioners, who were representing the first defendant then. They who requested him to explain what had transpired during the criminal proceedings at the Gutu Magistrates Court. He later agreed to depose to an affidavit. He was not informed of the purpose for which the affidavit was required. He confirmed that, save for a few missing details, the affidavit recorded what had happened in court. For instance, he had omitted to mention when he informed the court that he was representing the accused persons, he had requested an adjournment to enable him to interview the accused persons. The accused persons repeated the explanation they had given in court.

[58] The witness first met the second defendant on the day of the proceedings. The second defendant approached him after court and introduced herself as a journalist from the first defendant. She was accompanied by another journalist from a different publication. The witness informed the second defendant of the plaintiff's full name and that he was a public prosecutor stationed at Murambinda Magistrates Court. The witness also claimed that he informed his managing partner about the allegations and suggested that the plaintiff be advised that he had been implicated in a stock theft matter. The witness was not sure whether the managing partner communicated with the plaintiff. He maintained that the utterances implicating the plaintiff were made in court by the first accused person. In his view, the accused persons were unsophisticated rural individuals who believed that name dropping would work in their favour.

[59] Under cross-examination, the witness conceded that the record of proceedings produced before the court was certified as having originated from the court. He disputed that the defendants had requested him to depose to the affidavit placed before the court. He stated that they merely asked him to put into writing what had transpired. Owing to the lapse of time, he could no longer remember everything that had happened.

[60] The witness confirmed that his recollection was fresher when he deposed to the affidavit than when he testified before this court. The witness was invited to explain the inconsistencies in his affidavit where stated that he interviewed the accused persons shortly before court started, while in his oral testimony he claimed that he requested an adjournment to interview them. The witness maintained that when he stated in the affidavit that he interviewed the accused persons, he meant that nothing procedural had taken place before the adjournment and that the interview occurred after the adjournment.

[61] The witness further stated that when he deposed to the affidavit, he was not aware that it would be used in court proceedings. He added that had he known the purpose for which the affidavit was required, he would have prepared a more detailed one.

[62] The witness insisted that when he took over the matter, the accused persons were in the process of tendering their defence outline, although the trial had not yet commenced. He claimed that after interviewing the accused persons, and having heard their reaction to the charge, he advised them what they claimed to be their defence was not a defence at law.

[63] The witness confirmed that as reflected in his affidavit, he was the one who informed the court that the accused persons had been sent by the plaintiff. The trial magistrate made no comment on the allegations. When it was put to him that where allegations of that nature were made in court, the normal practice was for the court to direct the prosecutor to investigate the matter, he conceded that, ordinarily, the court would instruct the prosecutor to investigate such allegations. He further conceded that the accused persons had appeared in court for initial remand and bail application, and that the first accused person intended to plead guilty to the charge. When it was put to him that under the circumstances, bail would ordinarily not have been granted if the accused persons had indeed pleaded guilty, the witness averred that the question whether to grant bail was the within the discretion of the court.

The Plaintiff's Closing Submissions

[64] The plaintiff's counsel cited the case of *Mushunje v Zimbabwe Newspapers*[1] to support the point that for the defence of qualified privilege to succeed, the article must constitute a fair, accurate and balanced report of judicial proceedings. It was submitted that before the court could consider whether qualified privilege applied, it had to first determine the factual question whether the impugned words had in fact been uttered in open court. The plaintiff's counsel argued that the burden rested upon the defendants to prove that fact on a balance of probabilities.

[65] The plaintiff's counsel submitted that the defamatory words imputing that the plaintiff was involved in stock theft were never uttered in court. The record of proceedings contained no reference to the plaintiff or to any allegation that the accused persons had been sent by him to steal cattle. Although the defendants led evidence from their reporter and from the legal practitioner who appeared for the accused persons at the criminal trial, counsel argued that when all the evidence was considered, the plaintiff had established on a balance of probabilities that the alleged utterances were never made in court. In support of that

[1] HH 47/17

contention, the plaintiff produced the official record of proceedings bearing the signature of the clerk of court.

[66] Counsel further submitted that, notwithstanding the defendants' challenge to the authenticity of the court record, they took no steps to have the record corrected, reconstructed or amended to reflect the version they now advanced. It was argued that if the proceedings had indeed been inaccurately recorded, nothing prevented the defendants from placing a corrected record before the court. Their failure to do that strengthened the plaintiff's case that the alleged utterances had not been made in court as was alleged.

[67] The plaintiff submitted that, even if the court were to accept that the impugned words had been uttered in court, the defendants had nevertheless failed to establish the defence of qualified privilege. Reliance was placed on *Garwe v Zimbabwe Independent Publishers,*[2] where the requirements for that defence were restated. Counsel argued that the plaintiff was neither an accused person nor a witness in the criminal proceedings and was therefore entitled to be afforded an opportunity to comment before such serious allegations were published. It was submitted that the publication presented only one side of the story and could not therefore be regarded as fair or balanced.

[68] Counsel also referred the court to the case of *Makova v Masvingo Mirror (Pvt) Ltd & Ors,*[3] in submitting that the fact that the plaintiff was a public official did not deprive him of the protection from harm. If the publication was defamatory, then the presumption was that it was malicious**.** Reliance was further placed on *Levy v Modus Publications,*[4] for the proposition that a person who published a defamatory statement was equally liable for its publication. Counsel distinguished the *Mushunje v Zimbabwe Newspapers* case *supra*, from the present case pointing out that the defamatory statement in that case concerned an accused person appearing before the court, whereas in the present matter the plaintiff was an outsider to the proceedings. It was argued that, in such circumstances, the duty resting upon a responsible journalist to verify the allegations was even greater. Even if the utterances were made in court, the defence of qualified privilege would not save the defendants because the allegations were inaccurate and the fact that the plaintiff was not even running a butchery at the relevant time made them malicious.

[69] The plaintiff further submitted that the defendants failed to prove that the publication was accurate. Apart from the allegation that the plaintiff had sent the accused persons to steal

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[2] 2007 (2) ZLR 207 (H)
[3] 2012 (1) ZLR 503 (H)
[4] 1998 (1) ZLR 229

cattle, the article also stated that the plaintiff operated a butchery at Murambinda Growth Point. The uncontroverted evidence established that the plaintiff had ceased operating the butchery several months before the publication of the article. It was argued that this inaccuracy further demonstrated that the publication was neither fair nor accurate.

[70] Counsel also submitted that the defendants failed to satisfy the requirement that the publication must be balanced. It was argued that a fair report required more than the mere repetition of allegations allegedly made in court. The reporter made no attempt to obtain the plaintiff's comment before publication despite the seriousness of the allegations. Counsel submitted that the defendants, therefore, failed to establish that the publication was protected by qualified privilege.

[71] On the quantum of damages, counsel submitted that every person enjoyed an inherent right to dignity and once defamation was established, the plaintiff was entitled to compensation. It was submitted that each case must be determined on its own facts. Counsel submitted that the allegations were particularly serious because the plaintiff was not only a public prosecutor in charge of a district but also held a position of responsibility within his church. What also made it worse was that the allegations were of a criminal nature.

[72] The court was to award general damages in line with comparable authorities. The justice system was brought into disrepute by the false allegations. Punitive damages ought to be imposed because the plaintiff was not just a public official, but a public prosecutor who oversaw a whole district. The allegations were therefore damaging and far reaching.

The Defendants' Closing Submissions

[73] The defendants submitted that the gist of the plaintiff's claim was that they falsely reported and published criminal allegations and that the allegations had been made against him in court. According to defendants' counsel, the issue for determination was therefore whether those allegations had in fact been made. It was submitted that the defendants discharged that burden through the evidence of two witnesses who were present in court on the day in question. Their presence in court was never disputed by the plaintiff. There was no reason why either witness would fabricate evidence against a person whom they did not previously know.

[74] Counsel submitted that the evidence established that the accused persons had been transporting meat to the plaintiff's butchery. The two witnesses would not have guessed such particulars with such precision. The defendants submitted that on a balance of probabilities, their version was more probable because the plaintiff himself was not present in court when

the proceedings took place. Even assuming that utterances were made in court, the issue that the defendants were supposed to confirm with the plaintiff was not pleaded.

[75] Regarding the record of proceedings, the defendants submitted that the document relied upon by the plaintiff had not been authenticated by anyone. Counsel pointed out that it bore neither the signatures of the presiding magistrate, the prosecutor nor the legal practitioner who appeared in the matter. When asked by the court what to comment on what constituted a complete record, counsel submitted that, according to practice, it was one signed by all the relevant participants in the proceedings. The defendants therefore contended that little weight should be attached to the record produced by the plaintiff.

[76] Regarding the message on the banner imputing that the plaintiff was involved in stock theft, counsel contended that the submissions were contrary to the evidence placed before the court by the second defendants. They denied the allegation made as a question of fact. The defendants argued that the banner directed readers to the article. The defendants submitted that counsel for the plaintiff was at pains to link the banner to the story which did not say that the plaintiff stole cattle. The defendants also argued that the accuracy of the allegations was not an issue since the utterances were made in open court.

[77] On the issue of quantum, the defendants submitted that it was not in dispute that the plaintiff was a public prosecutor, the plaintiff failed to establish any substantial harm to his reputation. Counsel pointed out that the plaintiff remained employed as a public prosecutor and was not even suspended from work. There was no demonstrable harm. His status as an NPA prosecutor, was not stated in his papers. The fact that he was in charge of five police stations was not in the papers. There was no evidence that he was a deacon at his church in the form of a letter of appointment to that position. The defendants submitted that only fifteen copies of the newspaper were sent to Buhera and that was not negligible figure to cause any conceivable harm to the plaintiff's reputation.

The record of proceedings

[78] The court invited the parties to file supplementary submissions to address the legal issue concerning what constituted a proper and authenticated record of proceedings in the Magistrates' Court and the legal consequences of relying upon an incomplete and unauthenticated court record.

The Plaintiff's Supplementary Closing Submissions

[79] The plaintiff submitted that s 5 of the Magistrates Court Act established every Magistrates' Court as a court of record and required that court proceedings be officially

recorded and maintained under the custody and supervision of the clerk of court. This section established the statutory foundation for the existence of a formal, reliable, accurate and authenticated record.

[80] The plaintiff also relied on s 12(2) of the Civil Evidence Act which provides that: *"a copy of or extract from a public document which is proved to be a true copy or extract or which purports to be signed by the official who has custody of the original, shall be admissible in evidence on its production by any person and shall be prima facie proof of the facts stated therein".* The plaintiff submitted that a Magistrates' Court record was a public document and, once it bore the official stamp and signature of the clerk of court, it was presumed to be complete, accurate and authentic.

[81] A Magistrates' Court record is undoubtedly a public document for the purposes of the Civil Evidence Act. Once it bears the official certification, signature and stamp of the clerk of court, who is the lawful custodian of the original record, it becomes *prima facie* proof of the proceedings recorded therein.

[82] The plaintiff submitted that any party seeking to challenge the accuracy of the certified record shouldered the burden to demonstrate clearly that the certified record was inaccurate. The plaintiff accordingly submitted that only a properly authenticated Magistrates' Court record could be relied upon as the authoritative account of the proceedings and urged the court to declare this legal position and grant such further relief as it considered just and equitable.

The Defendants' Supplementary Closing Submissions

[83] The defendants submitted that the plaintiff's reliance on *Mushunje v Zimbabwe Newspapers* (1980) Ltd *supra* was misplaced because that judgment was overturned on appeal by the Supreme Court in *Mushunje v Zimbabwe Newspapers* (1980).[5] The principles established by the Supreme Court supported their defence, particularly in relation to the legal effect of newspaper headlines and the body of the article.

[84] Relying on the Supreme Court decision, the defendants argued that the newspaper headline should not be considered in isolation from the accompanying article. They submitted that the banner headline, did not identify the plaintiff by name but merely referred to a "Buhera Prosecutor". In their view, the headline was therefore innocuous and incapable, on its own, of constituting a defamatory publication. The defendants also submitted that the

[5] SC 119/20.

court should read the headline together with the body of the article before determining whether the publication was defamatory.

[85] The defendants further averred that the body of the article was likewise not defamatory because it made it clear that the plaintiff had merely been implicated by two accused persons during criminal proceedings before the Magistrates' Court. The publication accurately reflected what transpired in court and did not assert as a fact that the plaintiff had committed stock theft. According to the defendants, the evidence of their two witnesses, who were physically present during the proceedings, corroborated that the impugned statement had indeed been made in court, and this should dispose of the matter in their favour.

[86] The defendants submitted that, even if the Court were to find that the publication was defamatory, they were entitled to rely on the defence of qualified privilege. They argued that reports of judicial proceedings attracted the defence of qualified privilege because freedom of speech and freedom of the press required that court proceedings be reported to the public. They referred to the case of *Mushunje v Zimbabwe* Newspapers *supra* to support their submission.

[87] The defendants also averred that the second and third defendants were mere court reporters rather than investigative journalists and therefore could not have ignored such a story. Regarding the record of proceedings, the defendants challenged the authenticity and reliability of the record produced by the plaintiff. They submitted that the record tendered in evidence could not be regarded as a proper court record because its accuracy was disputed by the legal practitioner who appeared for the accused persons in the criminal proceedings.

[88] In support of this argument, the defendants cited the case of The *State v Hillary Rudolph*[6] where the court emphasised that a magistrate was required to keep an accurate and comprehensive record of court proceedings. The defendants averred that where the contents of a court record were being contested by a participant in the proceedings, the court should not simply accept that record as conclusive. They question was whether a contested record could properly be regarded as a complete and reliable record of what transpired before the Magistrates' Court.

[89] Regarding the formula used to calculate the quantum of the damages, the defendants averred that they only accepted their formula in so far as the quantum of damages was concerned because the plaintiff had failed to justify the quantum sought against his stature in

[6] HH 186/04,

the society. The defendants prayed for the dismissal of the plaintiffs claim with punitive costs.

The Issues

[90] The issues for determination are as follows:

a. Validity of the record of proceedings from the Magistrates Court.
b. Whether the article published by the defendants was defamatory of the plaintiff
c. Whether the impugned words were uttered in court.
d. Whether the publication constituted a fair and accurate report of judicial proceedings and whether the defendants established the defence of qualified privilege.
e. Whether, having regard to the findings on the above issues, the defendants are liable to the plaintiff for defamation; and
f. What is the appropriate quantum of damages to be awarded.

a. Validity of the record of proceedings from the Magistrates' Court

[91] The determination of this issue requires a consideration of the evidential status of the Magistrates' Court record produced before this court. Section 5 of the Magistrates Court Act[7] provides that *every court shall be a court of record*. The purpose of that provision is to ensure that proceedings conducted before the court are officially recorded and preserved. The evidential value of such a record is governed by s 12(2) of the Civil Evidence Act[8], which provides that:

> "A copy of or extract from a public document which is proved to be a true copy or extract or which purports to be signed and certified as a true copy or extract by the official who has custody of the original, shall be admissible in evidence on its production by any person and shall be *prima facie* proof of the facts stated therein."

In the court's view, the effect of that provision is that a certified copy of a public document is admissible in evidence, and it constitutes *prima facie* proof of the facts recorded therein. The section therefore recognises the evidential value and reliability of certified public documents while leaving it open to an opposing party to challenge their accuracy by proper evidence.

[92] The plaintiff submitted that because the record bore the official court stamp and the signature of the clerk of court, it constituted *prima facie* proof of the proceedings in terms of s 12(2) of the Civil Evidence Act. The plaintiff averred that any party that sought to challenge the accuracy of the certified record bore the burden to demonstrate clearly that the certified

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[7] [*Chapter 7:10*]
[8] [*Chapter 8:01*]

record was inaccurate. The defendants, on the other hand, submitted that the record was incomplete and therefore could not be regarded as an accurate or exhaustive account of everything that transpired during the criminal proceedings.

[93] I agree with the plaintiff that the record was an authenticated court record within the contemplation of s 12(2) of the Civil Evidence Act. The official court stamp and the signature of the clerk of court, in my view established that the document was a copy issued from the court's official record. That document therefore constituted *prima facie* proof of what was recorded in it. The official record, therefore, enjoyed a statutory presumption of correctness. However, *prima facie* proof is not, in the court's view, conclusive proof. The presumption may be displaced by credible evidence demonstrating that the record was incomplete or inaccurate. The defendants submitted that the record could not be regarded as a complete account of everything that transpired before the magistrate.

[94] A comparison of the two documents demonstrates this. The first document was a typed transcript. It recorded the submissions made by the legal practitioner, the prosecutor's response and concluded with the magistrate's ruling admitting the accused persons to bail. Although it bore the official court stamp, it was not signed by the presiding magistrate. The second document was the handwritten court record. It bore the same official court stamp but it was plainly incomplete. It ended during the prosecutor's submissions at the point where the prosecutor stated the following:

> "...however, there are fears that the..."

Thereafter the record ended abruptly. It contained neither the remainder of the prosecutor's submissions nor the magistrate's ruling.

[95] When both documents are considered together, one may reasonably assume that the typed record represented the complete proceedings, whilst the handwritten record constituted only part of those proceedings. It ended during the prosecutor's submissions and did not record either the conclusion of those submissions or the magistrate's ruling. However, given the dispute regarding the completeness of the record, this court cannot safely conclude that the documents placed before it constituted the complete original record of the proceedings. The court is therefore unable to conclude that everything said before the Magistrates' Court had been captured in the material placed before it.

[96] In *S v Davy*[9] the Supreme Court stressed that a court record must be complete, clear and accurate because *"...the record kept by them is the only reliable source of ascertaining what took place and what was said and from which it can be determined whether justice was done."* In my view, a complete, clear and accurate record enables the court to properly determine the issues before it. Likewise, in *S v Rudolph*,[10] the court emphasised that:

> "…every trial magistrate is duty bound to record the proceedings before him with assiduous care and diligence."

The above authorities illustrate that completeness is an essential attribute of a proper court record.

[97] Applying those principles to the present matter, I am satisfied that the record produced before this court was an authentic court record for purposes of s 12(2) of the Civil Evidence Act. However, where it is shown that only part of the original record was produced, the court cannot elevate that incomplete record into conclusive proof of everything that was, or was not, said during the proceedings. The difficulty lies in the fact that the copy placed before this court was incomplete to the extent that some pages were missing. The court is therefore unable to ascertain whether the missing pages contained material portions of the proceedings relevant to the issues before it.

b. Whether the article published by the defendants was defamatory of the plaintiff

[98] In determining whether the article was defamatory, the court must adopt an objective approach. That approach is well established in our law. In *Madhimba v Zimbabwe Newspapers (1980) Ltd*[11] the court held that the enquiry involves determining first whether the words are capable of bearing the defamatory meaning alleged; secondly, whether that is the meaning which would probably be understood by the ordinary reasonable reader; and thirdly, whether that meaning was defamatory.

[99] It is common cause that the first defendant published the article complained of and that the article referred to the plaintiff. The article alleged, in substance, that accused persons who were facing stock theft charges informed the court that they had been sent by the plaintiff, then a public prosecutor, to steal cattle. The plaintiff's case was that the publication conveyed the false and defamatory imputation that he had participated in, or facilitated, the commission of a criminal offence. The defendants did not dispute the publication or that the article

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[9] 1988 (1) ZLR 386 (S)
[10] HH 186/04
[11] 1995 (1) ZLR 391 (H)

referred to the plaintiff. Their defence was that the article constituted a fair and accurate report as the newspaper merely reported on what was said in court.

[100] The enquiry is therefore whether the words complained of were capable of bearing the defamatory meaning attributed to them. In my view, an allegation that a serving public prosecutor instructed or recruited accused persons to commit stock theft is grave. It imputes criminal conduct, dishonesty and abuse of the authority entrusted to him by virtue of his office. Such an allegation is inherently capable of lowering a person in the estimation of right-thinking members of society and of seriously damaging his personal and professional reputation.

[101] The second enquiry concerned the meaning which the ordinary reasonable reader would have attached to the publication. The article must be considered as a whole, together with the message conveyed by the accompanying banners. The banners were relevant in demonstrating the way the publication was understood by members of the public.

[102] The plaintiff's testimony was that accompanying the publication were banners in Murambinda stating, "*Prosecutor involved in scandal*" and others in Gutu stating that, "*BUHERA COURT PROSECUTOR 'STEALS' CATTLE FROM GUTU FARMER".* Thereafter, the plaintiff started receiving telephone calls from concerned relatives enquiring about the allegations. This reaction confirmed that the publication was not understood as a neutral report that allegations had merely been made in court. Its natural and ordinary meaning was that the plaintiff, a serving public prosecutor, was himself implicated in stock theft and had abused his office to facilitate criminal conduct.

[103] The third enquiry was whether the meaning conveyed by the article was defamatory. In *Chinamasa v Jongwe Printing & Publishing Co (Pvt) Ltd & Another*,[12] the court, adopting the approach expressed by Muchechetere J in *Velempini v Engineering Services Department Workers' Committee for the Engineering Services of the City of Bulawayo & Others*,**[13]** stated that:

> "…the approach is whether the offending statement is calculated to bring another person into contempt, or undue ridicule, or which is calculated to diminish the willingness of others to associate with the plaintiff, or which is calculated to lower him in the estimation of right thinking or reasonable members of society generally."

[104] Applying that test, the publication was plainly defamatory. An allegation that a prosecutor participated in or facilitated stock theft strikes directly at the qualities expected of

[12] 1994 (1) ZLR 133 (H)
[13] 1988 (2) ZLR 173 (H)

an officer responsible for the administration of criminal justice, namely honesty, integrity and impartiality. It is an allegation which would naturally diminish public confidence in the plaintiff and lower him in the estimation of reasonable members of society. It also eroded public confidence in the criminal justice system in that officials who were sworn to fight crime in its different forms were the ones at the forefront of abusing their positions in aggravating crime. It therefore followed that the impugned words were defamatory in their ordinary meaning.

c. Whether the impugned words were uttered in court

[105] The defendants' principal defence was that the article was a fair and accurate report of the judicial proceedings. They were therefore covered by the defence of qualified priviledge. That defence necessarily depended upon the proof that the impugned words were in fact uttered before the magistrate. The burden of establishing that fact rested upon the defendants. The headline of the article reads:

> "Buhera prosecutor implicated in stock theft."

The opening paragraph of the article stated that:

> "Two Buhera villagers **told** Gutu Resident Magistrate that **they stole cattle after being sent by prosecutor Tiriwamambo Kangai who runs a butchery**." *My emphasis*

The article further stated that:

> "The two accused told Mohamadi that Kangai runs a butchery at Murambinda Growth Point."

[106] An ordinary reader would understand these words to mean that the two accused told the magistrate that the plaintiff had sent them to steal cattle. That was a direct allegation that the plaintiff participated in the commission of the offence. However, the evidence led by the defendants does not support the publication in those terms.

[107] The second witness testified under cross-examination that after court, *'she approached the lawyer because she wanted to check the full name, that's when she heard the plaintiff's profession'*. She also told the court that she did not check the record of proceedings but, she verified the utterances with the legal practitioner. Under re-examination, the witness admitted that she was told the plaintiff's full name and profession by the accused persons legal practitioner. When requested by the court to clarify what exactly had been said by the accused person in court, she stated that first accused had said that the *'third accused person who was missing in court <u>had told them</u> that the person who was sending them to steal cattle was the plaintiff.'*

[108] That evidence requires careful evaluation. The article does not merely identify the plaintiff by name. It specifically described him as a prosecutor and also stated that he operated a butchery at Murambinda. Under cross examination, the second defendant acknowledged she obtained the plaintiff's full name and his profession from the accused persons' legal practitioner. She candidly acknowledged that she obtained those details not from what she allegedly heard in court, but from the accused persons' legal practitioners outside court. She further accepted that the plaintiff's profession was included because it would "*give more weight to the story."* It follows that the publication was not based exclusively upon what transpired in court. It was supplemented by information obtained from the third witness after the proceedings had been concluded in court.

[109] The evidence of the third witness also requires closer scrutiny. He testified that he attended proceedings at Gutu Magistrates' Court as the legal practitioner for the accused persons. He arrived after the accused persons were already in the dock and were having exchanges with the trial magistrate. At that stage, he did not know the accused persons and observed the proceedings from the public gallery. He stated that during the recording of the '*accused persons' pleas', (my emphasis),* the first accused explained that he and another individual named Kangai had been sent by a person also identified as Kangai, whom he understood to be a public prosecutor based at Murambinda Magistrates' Court. This Kangai allegedly operated a butchery in Murambinda. Going by the third witness's version, these exchanges between the court and the accused persons occurred when he was seated in the gallery and before he assumed the conduct of the case.

[110] The witness also told the court that he was later approached by a legal practitioner from the law firm Ruvengo Maboke who asked him to explain what had transpired in court and he told them. He was later requested to depose to an affidavit. Under cross-examination, the third witness confirmed that: *'he was the one who told the court that the accused persons had been sent by the plaintiff as per his affidavit.'*

[111] The affidavit deposed to by the third witness, however, presented a materially different version. In paragraph 4 he stated that:

> "When I interviewed the duo shortly before the court, they advised me that they were not pleading guilty to the offence. They stated that they used to ferry cattle to Tiriwambo Kangai who owned a butchery at Murambinda Business Centre on the instruction of one Tinei Godfrey Kangai."

Paragraph 5 continued as follows:

> "Acting on those instructions and during my application, I advised the Magistrate that the accused persons were tendering a plea of not guilty and that they were used by Tinei Godfrey Kangai to drive cattle to one Tiriwambo Kangai."

In paragraph 6, the witness concluded by stating that:

> "I aver therefore that one Tiriwambo Kangai was implicated by the duo in their defence outline."

[112] The evidence of the third witness does not materially strengthen the defendants' case. His oral testimony, his affidavit and the published article cannot be reconciled. Having accepted that he was the person who briefed the second witness after the proceedings and later deposed to an affidavit, it was incumbent upon him to present a consistent account of what had transpired in court. Instead, the versions differ in material respects. More importantly, the witness accepted that it was him who conveyed the information upon which the article was based. The publication therefore reflected his own account of the proceedings rather than the exact words allegedly uttered by the accused person. There is an obvious distinction between saying that cattle were ferried to a person who operated a butchery and saying that the same person sent people to steal cattle. The former does not necessarily import criminal conduct on the part of the recipient. The latter plainly does. Yet the article categorically reported that:

> "Two Buhera villagers told Gutu Resident Magistrate that they stole cattle after being sent by prosecutor Tiriwamambo Kangai who runs a butchery."

That allegation finds no clear support in either the third witness's oral testimony or his affidavit.

[113] Finally, the court found it difficult to reconcile the third witness's oral evidence with paragraph 6 of his affidavit, where he stated:

> "I aver therefore that one Tiriwambo Kangai was implicated by the duo in their defence outline."

In his own oral testimony, the third witness averred that he arrived after court had already commenced, and he found the magistrate testing the accused persons pleas. He also heard the first accused explaining what he considered to be his defence, wherein he implicated the plaintiff. Elsewhere, the plaintiff pointed out that this was an initial remand proceeding where no formal defence outline would ordinarily be tendered. Whether or not that proposition is ultimately correct, the inconsistency in the third witness's own account diminishes the reliability of his evidence.

[114] Having considered the evidence of the second witness alongside that of the third witness, the court is unable to find that the defendants established, on a balance of probabilities, that the impugned words were in fact uttered in court in the terms published. Rather than corroborating one another, their evidence revealed material inconsistencies concerning the source, content and context of the alleged utterances. Those inconsistencies assume greater significance in light of the defendants' failure to produce a complete record of proceedings, which remained the best available evidence of what transpired before the magistrate.

[115] Having been made aware at the pleading stage that the plaintiff disputed that any such utterances implicating him in the theft of cattle were made in court, the defendants bore the onus of placing before the court what they considered to be the accurate record of proceedings that recorded what was exactly said in court. Alternatively, they ought to have invited the first accused person himself to corroborate the utterances that were attributed to him.

d. Whether the publication constituted a fair and accurate report of judicial proceedings and whether the defendants established the defence of qualified privilege

[116] The defendants pleaded that the article constituted a fair and accurate report of judicial proceedings and that the publication was accordingly protected by qualified privilege. It is trite that the defence of qualified privilege in relation to reports of judicial proceedings is not available merely because a journalist was present in court. The privilege attaches only to a report which is fair, accurate and substantially truthful relative to what transpired during the proceedings.

[117] In the case of *Mushunje v Zimbabwe Newspapers*[14], the court commented on the defence of qualified priviledge as follows:

> "[45] The defence of qualified privilege would apply to fair and substantially accurate reports of judicial proceedings. In *Masuku v Goko & Anor* HH 127/06, PATEL J (as he then was) had occasion to consider the defence of qualified privilege. This is what he had to say at p 7 of his judgment:
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> > "The defence of privilege entails having to establish that the defendant had a duty or interest in publishing the impugned statement and that the person or persons to whom it was published had a similar duty or interest to receive it. It is trite that newspapers have a right to keep their readers informed about matters of public interest involving public figures. The more prominent the personage the more the public has an interest in his affairs and moral probity. However, even if the elements of privilege are established, the defence is vitiated if it is shown that in making the statement the defendant was actuated by malice or that he abused or exceeded the bounds of

[14] SC 119/20 at p 19

> privilege. See in these respects *Musakwa v Ruzario* 1997 (2) ZLR 533 (H) at 535-537; *Mugwadi v Nhari & Anor* 2001 (1) ZLR 36 (H) at 41-46."

The defendants bore the onus of establishing that the publication was founded upon facts which were true and that fairly and accurately reflected what transpired during the court proceedings. In the *Mushunje* case, the court also highlighted that were reporters resorted to sources outside the court record to find their story, then they could not seek refuge under the defence of qualified priviledge.

[118] Measured against those requirements, the defendants failed to discharge that burden. They did not place before the court a complete record of the proceedings which confirmed that the utterances were made in court, in order give credence to their argument that the publication was a fair and substantially accurate report of what transpired in court. The record produced was admittedly incomplete. It contained no reference to the plaintiff and did not record the statements allegedly attributed to the accused persons, which formed the very basis of the publication. The defendants did not place their own version of what they considered to be the accurate record of what transpired in court. They forgot that they also bore the onus to prove on a balance of probabilities that the defamatory utterances were made in court.

[119] The principle that a party relying upon judicial proceedings must ensure that the relevant record accurately reflects what transpired was emphasised in *S v Davy* supra**,** the Supreme Court held that:

> *"When considering an appeal, the appeal court is to have regard to what appears on the record. If the appellant is not satisfied with the record as it stands, and is unable through no fault of his to obtain its rectification pursuant to the procedure specified in Order III Rule 6 of the Magistrates Court (Criminal) Rules, he must apply expeditiously on notice of motion for rectification."*

Although the case concerned a criminal appeal, the underlying principle is apposite to the present matter. A party who seeks to rely upon proceedings before another court must place before the court the best available evidence of those proceedings.

[120] In the present matter, the defendants were in the position of a party seeking to rely upon the record of proceedings of the criminal court. If they considered the criminal record placed before the court by the plaintiff to be inadequate to support their defence, it was incumbent upon them to take steps to have the deficiencies corrected. Their failure to do so meant that they were left to rely principally upon the oral evidence of their reporter, the second defendant and Mr Mafa, the third witness. That evidence, however, could not cure the absence of the primary record upon which their defence depended.

[121] Having failed to establish that the impugned words were uttered in court, the defendants necessarily failed to prove that the article was a fair and accurate report of those proceedings. The principle enunciated in the above case is that a report cannot be said to be fair or accurate if the factual foundation upon which it rests, has not been established. The publication was not shown to be a fair, accurate and substantially correct report of the criminal proceedings.

[122] The next enquiry is whether the defence of qualified privilege could be successfully invoked by the defendants considering the circumstances of this case. In *Mushunje v Zimbabwe Newspapers (1980) LTD* supra**,** the court stated the following:

> "In order to avail oneself of the defence of qualified privilege a reporter must adduce evidence that the report was published on a privileged occasion. He can only be protected if there was no malice or improper motive."

The court further observed that:

> "The defence of qualified privilege is available to the reports of court proceedings. It is considered to be an essential part of the greater right of freedom of speech but this right, like other rights, is not an absolute right. A newspaper that publishes defamatory matter during the course of reporting on court proceedings may plead qualified privilege as a defence to a claim for defamation arising from such publication. Accordingly, a report should be fair and substantially correct."

[123] The enquiry is not therefore confined to whether the publication was concerned with judicial proceedings. The court must examine whether the report faithfully reflected what occurred before the court and whether the published material remained within the limits of a fair and accurate report. The importance of the source and nature of the information relied upon was emphasised in *Chinamasa v Jongwe Printing & Publishing Co (Pvt) Ltd & Anor* [15], where the court, adopting the principles in Neethling v Du Preez & Ors, stated that:

> "In deciding whether a defamatory publication attracts qualified privilege the status of the matter communicated (ie its source and intrinsic quality) is of critical importance. In this connection obvious questions which suggest themselves (the examples given are not intended to be exhaustive) are: Does the matter emanate from an official and identified source or does it spring from a source which is informal and anonymous? Does the matter involve a formal finding based on reasoned conclusions, after the weighing and sifting of evidence, or is it no more than an ex parte statement or mere hearsay?" (Underlining for emphasis)

The defendants therefore bore the evidential burden of establishing the factual foundation upon which the defence rested. A report which introduced allegations, facts or imputations which were not part of the proceedings cannot enjoy the protection afforded to a fair report. Once the publication departs materially from what occurred in court, the foundation for qualified privilege falls away.

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[15] 1994 (1) ZLR 133 (H)

[124] There is a further difficulty confronting the defendants. The publication made serious allegations which affected the plaintiff's professional reputation. In the circumstances, fairness required that reasonable steps be taken to verify the allegations before publication. See *Chinamasa v Jongwe Printing & Publishing Co (Pvt) Ltd & Anor supra*. One such step would have been to seek comment from the plaintiff and afford him an opportunity to respond to the allegations made against him, particularly where the publication implicated him in improper conduct, and he was not even party to the criminal proceedings in the Magistrates Court.

[125] The failure to seek a comment is not, by itself, determinative of liability. However, it is a relevant factor in assessing whether the defendants acted fairly, whether reasonable steps were taken to verify the information, and whether the publication was made without malice or improper motive. In *Chinamasa v Jongwe Printing & Publishing Co (Pvt) Ltd & Anor***,** the court held that a newspaper which intended to publish serious allegations could not claim privilege while failing to undertake even basic verification. The court observed that:

> "The People's Voice could hardly have failed in any duty it felt it had to the public if it had delayed the matter for a week to speak to Mr Chinamasa. That is undoubtedly true. If it had done so, it would hopefully have succeeded in publishing a fair and balanced article."

The court further held that

> "Mr Gillespie argues that objectively judged the defendants can have had no possible duty to publish the information and imputations without any attempt at verification, particularly in that they have in substance been shown to be false. I am in full agreement with that submission."

[126] The same reasoning applies in the present matter. The allegations published against the plaintiff were serious and potentially damaging to his professional reputation. A simple opportunity for the plaintiff to respond would have enabled the defendants to verify the allegations and publish a balanced account. Their failure to seek his comment was inconsistent with the obligation of fairness which underpins the defence of qualified privilege.

e. Whether, having regard to the findings on the above issues, the defendants are liable to the plaintiff for defamation.

[127] In the present matter, the publication of the defamatory article concerning the plaintiff was not disputed. The defendants sought to justify the publication principally on the basis that it constituted a fair and accurate report of judicial proceedings and was therefore protected by qualified privilege. For the reasons already given, that defence has not been

established. The defendants have accordingly failed to rebut the presumptions of wrongfulness and *animus iniuriandi*. It follows that the publication was unlawful and that the defendants are liable to the plaintiff for the damages flowing from the defamatory publication.

f. The appropriate quantum of damages to be awarded.

[128] The purpose of an award of damages in a defamation action is to vindicate the plaintiff's reputation and compensate him for the injury to his dignity and standing in the community. Such an award is not intended to punish the defendant or enrich the plaintiff. See *Shamuyarira v Zimbabwe Newspapers (1980) Ltd & Anor*[16] and *Mahere v Gappah.*[17] The assessment of damages requires consideration of all the circumstances of the case, including the nature and gravity of the defamatory publication, the status of the plaintiff, the extent of publication, the conduct of the defendant, and whether any steps were taken to mitigate the harm.

[129] The plaintiff was, at the time of publication, a serving public prosecutor responsible for the administration of criminal justice in Buhera District. His office required public confidence in his honesty, impartiality and integrity. The allegation that he was directing accused persons to steal cattle was therefore particularly damaging. It did not merely question his personal character, it had negative connotations particularly on the office which he occupied. The seriousness of the allegations was aggravated by the fact that it attributed criminal conduct to a person whose professional responsibilities involved prosecuting crime.

[130] The extent of publication is another important consideration. However, in the present matter, evidence established that the newspaper circulated within the communities of Buhera, Gutu and Mutare. The evidence further established that the publication came to the attention of the plaintiff's relatives, work colleagues, church members and members of the public. The subsequent appearance of banners repeating the defamatory allegations demonstrated the extent to which the publication damaged the plaintiff's reputation in the very community in which he performed his public duties.

[131] I have also considered the defendants' conduct after publication. Upon being confronted with the allegations, the plaintiff caused a letter of demand to be served seeking a retraction and correction. The defendants did not apologise, nor retract the article, or publish

[16] 1994 (1) ZLR 445 (H) at 502-503
[17] HH 367/24

any clarification. Instead, they persisted defending their publication right up to the prosecution of these proceedings.

[132] In *Mahere v Gapa,* supra, damages were awarded in the sum of US$18,000.00 for defamatory allegations affecting the plaintiff's reputation. The case is apposite herein in assessing the appropriate measure of damages. While each case must be determined on its own facts, the decision provides useful guidance regarding the seriousness with which courts treat publications that attack professional reputation and attribute improper conduct to an individual, particularly with those professions that require the highest levels of honesty, integrity and transparency in the execution of duties. It underscores the importance of vindicating a plaintiff where the defamatory material attributes improper conduct to that person and has the potential to diminish the esteem in which he or she is held by the public. In assessing the appropriate award in the present matter, regard must therefore be had to the nature of the publication, the seriousness of the allegations made, the position occupied by the plaintiff, and the extent to which the publication was likely to cause harm to his reputation and standing in the community.

[133] I am mindful, however, that damages in defamation are compensatory and not punitive. The plaintiff did not prove actual financial loss, nor was there evidence that he was suspended, dismissed or suffered a direct loss of income as a result of the publication. The award must therefore be measured against the actual injury to his reputation and dignity, while reflecting the seriousness of the allegations, the extent of dissemination and the defendants' failure to remedy the harm.

[134] Having considered the plaintiff's position in society, the gravity of the defamatory allegations, the fact that they imputed criminal conduct, the extent of publication, the repetition of the allegations through the banners that were displayed in public, the defendants' failure to verify the correctness of the allegations before publication, and their refusal to apologise or retract the article, I am satisfied that an amount of US$15 000.00 constitutes a fair and reasonable award.

Costs

[135] Costs ordinarily follow the event, and I find no reason to depart from that general principle. The plaintiff has been substantially successful in his claim. Whilst I have found that the defendants acted with reckless disregard for the truth of the publication, I am not persuaded that this is a proper case for the award of costs on a punitive scale. An award of costs on the ordinary scale will adequately compensate the successful party.

Resultantly, it is ordered that:

1. Judgment is hereby entered in favour of the plaintiff against the defendants, jointly and severally, the one paying the others to be absolved for the payment of US$15, 000.00 or the ZiG equivalent payable at the prevailing interbank rate on the date of payment, as damages for defamation.
2. The defendants, jointly and severally, the one paying the others to be absolved, shall pay interest on the above amount at the prescribed rate of 5% per annum from the date of judgment to the date of payment.
3. The defendants shall pay the plaintiff's costs of suit on the ordinary scale, jointly and severally, the one paying the others to be absolved.

MUSITHU J……

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Matsikidze Attorneys At Law, defendants' legal practitioners